

The Misuse of Rules and Laws in India

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Abstract

The disjunction between formally promulgated rules and their lived implementation in India has far-reaching consequences. Laws and institutional regulations, conceived to uphold justice, equality, and fairness, are frequently manipulated—subtly or overtly—to serve vested interests, perpetuate hierarchies, or coerce the vulnerable. This extended paper delves deeper into multiple domains—judiciary, politics, workplaces, educational institutions, and personal spheres—drawing on a wider array of examples, data, and scholarly commentary. It probes structural drivers of rule-bending, highlights the human cost, and surveys reform pathways grounded in transparency, accountability, and participatory oversight. The framework also draws from foundational legal scholarship, including works by Upendra Baxi and Marc Galanter, to situate contemporary patterns within a jurisprudential context.

1 Introduction

India’s constitutional and legal edifice is among the most elaborate globally, embedding fundamental rights, checks and balances, and procedural safeguards. Yet, the lived reality often diverges sharply: delays in justice, discretionary enforcement skewed towards the powerful, institutional opacity, and informal norms overshadowing codified rules. Such divergence arises not solely from overt corruption, but from the strategic—or inadvertent—misuse of rules through selective application, procedural technicalities, or cultural deference to authority. This “flexible justice” undermines trust in institutions, perpetuates inequality, and erodes the rule of law. This paper builds on earlier analyses by incorporating more examples, statistics, and nuanced discussion of systemic drivers, before proposing multi-pronged reforms rooted in transparency, accountability, and participatory oversight, informed by key jurisprudential theories.

2 Judiciary and Political Power

2.1 Undertrial Prisoner Crisis

A chronic illustration of procedural misuse is the vast undertrial population. According to the National Crime Records Bureau (NCRB) “Prison Statistics India 2022,” undertrial prisoners constituted 75.8% of the total prison population (approximately 434,302 out of 573,220) as on December 31, 2022 [1, 2]. Many remain in custody longer than the maximum sentence for their alleged offences. The Supreme Court’s landmark *Hussainara Khatoon v. State of Bihar* (1979) underscored Article 21’s guarantee of personal liberty

and the right to speedy trial [3], yet pendency remains acute, with over 30 million cases pending across courts [1]. Repeated adjournments and procedural delays result in de facto punishment without adjudication, disproportionately affecting the poor who cannot secure bail or legal aid promptly.

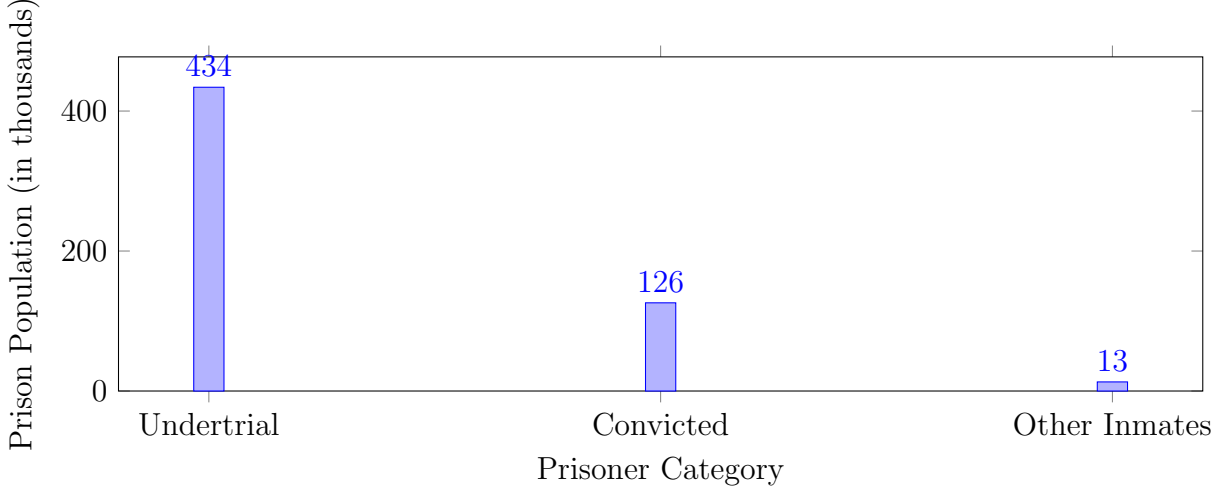


Figure 1: Prison Population in India by Category, 2022 (Source: NCRB)

2.2 Political Influence and Disqualification Rules

Rules barring convicted persons from contesting elections are designed to uphold public trust. However, high-profile cases reveal tensions between the letter of law and political realities. For instance, in the multi-crore Fodder Scam, former Bihar Chief Minister Lalu Prasad Yadav was convicted and disqualified from Parliament in October 2013; yet he continued to exert influence over party affairs while appeals proceeded [4]. Frequent stays and protracted appeals dilute the deterrent intent of disqualification rules, conveying that elite actors can navigate or defer consequences.

2.3 Celebrity Cases and Differential Treatment

Comparisons between ordinary citizens and high-profile individuals expose disparities in judicial processing. Salman Khan’s Blackbuck poaching case exemplifies this: after accusations in 1998, repeated bail hearings, appeals, and media attention culminated in his bail being processed within hours of sentencing in April 2018 [5]. Such expedited processes contrast sharply with delays rural defendants face in accessing legal aid or timely bail. Marc Galanter’s theory of “repeat players” elucidates how resource-rich litigants leverage familiarity and resources to influence outcomes [6].

2.4 Selective Enforcement and Discretionary Probes

Investigative agencies with broad mandates (e.g., CBI, ED, Income Tax) are sometimes perceived as instruments for political ends. High conviction rates in certain agencies’ prosecutions contrast with lower conviction rates elsewhere, raising concerns about selective targeting [8, ?]. Critics argue that discretionary initiation of inquiries, differential resource allocation, and public narratives can be weaponized against political opponents

while overlooking violations by allies. As Upendra Baxi observed, “rule of law is often invoked selectively to affirm sovereign power rather than check it” [7].

3 Workplace Misuse of Rules

3.1 Arbitrary HR Practices and Bias

Workplace rules on attendance, probation, and evaluations are intended to ensure fairness and performance standards. Yet surveys reveal widespread perceptions of bias: a 2024 Aon “Voice of Women Study” found that about 40% of working women in India faced bias or insensitive behaviour at work, with around 6% experiencing sexual harassment but fewer than half reporting formally [9]. Anecdotal accounts describe arbitrary marking of absences, retroactive disciplinary actions, or vague “performance gaps” cited to deny promotions—often reflecting managers’ subjective preferences rather than objective criteria. Such misuse disproportionately affects marginalized groups, including women returning from maternity leave, who may be penalized under opaque policies.

3.2 Sexual Harassment Law: Implementation vs. Misuse

The POSH Act (2013) aims to prevent sexual harassment, but implementation gaps and sporadic misuse allegations illustrate complexity. Genuine underreporting remains far larger than proven false complaints. The challenge lies in balancing prompt, impartial investigation with safeguards against misuse—for instance, ensuring confidentiality, trained internal committees, and legal recourse for malicious complaints [10].

3.3 Gig Economy and Casteed Disparities

Platform-based gig work reveals another layer of rule misuse: ostensibly uniform algorithms for assignments or ratings often replicate social inequities. A study found that Scheduled Caste and Tribe workers disproportionately faced longer hours and lower earnings compared to unreserved category peers [11]. Although platform rules purport neutrality, lack of oversight and absence of collective bargaining allow structural bias to persist under the guise of “market-driven” norms.

3.4 Public Sector and Nepotism

In government or PSU contexts, formal rules on recruitment, transfers, and promotions exist to ensure meritocracy. Yet informal networks and patronage often override them. Reports have recounted cases where connections secured appointments or shielded individuals from disciplinary action, while dissenters faced retroactive enforcement of minor rules [12]. Lack of transparency in internal proceedings and limited public scrutiny foster such misuse.

4 Educational Institutions and Student Experiences

4.1 Political and Ideological Coercion

Educational settings, ideally spaces for critical thought, sometimes become arenas for coercion aligned with political interests. Instances of students pressured to attend rallies

or participate in events to inflate attendance or internal marks have surfaced. For example, reports in 2020 indicated engineering students in Tamil Nadu compelled to join local political campaigns under threat of lower grades [13].

4.2 Campus Safety and Disciplinary Double Standards

High-profile campus violence—such as the Gargi College molestation incident (Feb 2020), where administrative lapses and victim-blaming highlighted misuse of safety norms—and the 2020 JNU attack reveal how institutional responses can be shaped by political or patriarchal biases [14, 15]. Rules on campus entry, security protocols, or disciplinary procedures are sometimes enforced unevenly—focusing on student protests or dissent while overlooking administrative shortcomings or external agitators.

4.3 Discrimination in Evaluation and Access

Students from marginalized backgrounds report biases during evaluations and access to resources. Surveys indicate caste-based prejudice in grading, mentorship opportunities, and disciplinary actions. A study noted significant proportions of SC/ST students experiencing unfair evaluation and social isolation [16]. Despite reservation policies, informal gatekeeping—through subjective reference letters, networking biases, or differential enforcement of academic regulations—impedes true inclusion. Instances of faculty harassment or reluctance to address complaints within Equal Opportunity Cells further illustrate institutional inertia.

4.4 Research and Funding Inequities

Rules governing research grants, funding allocation, and conference travel intend fairness, yet informal factors (networks, patronage, reputation) influence decisions. Early-career researchers from lesser-known institutions or marginalized backgrounds may face disadvantages, as review committees sometimes favor established names. Transparency in review criteria and anonymized evaluations are proposed remedies but remain unevenly adopted [17].

5 Personal Relationships and Emotional “Lawfare”

5.1 Misuse of Domestic Laws

Family laws intended to protect (e.g., Section 498A IPC against cruelty and dowry harassment) have dual realities: genuine victims rely on them for redress, yet courts have acknowledged instances of false or exaggerated complaints used to leverage settlements or harass relatives. The Supreme Court in *Rajesh Sharma v. State of U.P.* (2017) noted low conviction rates and possible misuse but cautioned against undermining protective intent [18]. The challenge is balancing swift protection of vulnerable spouses with safeguards—such as preliminary inquiry mechanisms—to filter malicious cases without diluting deterrent power against genuine offenders.

5.2 Custody and Divorce Strategies

In divorce or custody disputes, legal provisions can be wielded as emotional weapons: ex-partners may threaten false allegations, drag out proceedings through procedural tac-

tics, or use resource asymmetries to pressure settlements. Courts have responded with procedural safeguards (e.g., encouraging mediation), but unequal access to legal counsel prolongs conflict and emotional distress [19].

5.3 Informal Norms and Social Coercion

Beyond formal laws, societal norms and customs act as “rules” that can be misused for control: invoking traditional gender roles to justify emotional blackmail, using social reputation threats to enforce compliance, or leveraging indebtedness from past favors. Such “emotional lawfare” lacks formal codification but operates through cultural scripts and power imbalances, often internalized by individuals and hard to redress through legal means [20].

6 Structural and Cultural Drivers

6.1 Bureaucratic Discretion and Lack of Transparency

Wide discretionary powers—vested in police, bureaucrats, administrators—without transparent criteria enable selective rule application. Absence of publicly accessible enforcement data or audit mechanisms means patterns of bias remain hidden. This opacity fosters impunity for powerful actors and fear among weaker parties. Upendra Baxi critiqued such bureaucratic insulation and rule fetishism disconnected from social justice imperatives [7].

6.2 Social Hierarchies and Power Asymmetries

Caste, class, gender, and political patronage shape who wields institutional influence. Informal networks often supersede formal qualifications or protocols. Marc Galanter’s differentiation between “one-shotters” and “repeat players” shows how legal procedures favor those familiar with and able to navigate the system [6]. Marginalized individuals lack the social capital to challenge misuse, reinforcing hierarchical perpetuation of rule-bending.

6.3 Judicial Delays and Backlogs

Chronic delays in courts incentivize strategic delays by well-resourced litigants, who can prolong proceedings or obtain multiple stays, while the poor languish without resolution. Backlogs also discourage trust in formal dispute resolution, pushing some conflicts into informal or extra-legal arenas [1].

6.4 Weak Accountability Mechanisms

Internal complaint bodies (e.g., ombudsmen in institutions) often lack independence or enforcement muscle. Whistleblower protections are insufficiently enforced. Media and civil society play oversight roles but face constraints: media biases, political pressures, or resource limitations can blunt scrutiny [21].

7 Toward Reform and Responsibility

7.1 Transparency and Data Publication

- Mandated proactive disclosure of enforcement data (e.g., bail grants, investigation timelines, internal HR actions) in anonymized form to detect patterns of bias.
- Public dashboards for judicial pendency statistics, agency inquiry outcomes, and complaint redressal metrics in workplaces and educational institutions.
- Strengthen RTI implementation: Central Information Commission Annual Reports highlight areas where data remains opaque [22].

Empirical visibility enables accountability and informed policy responses.

7.2 Independent Oversight Bodies

- Establish ombudsman-style bodies in universities, PSUs, and large private organizations, with statutory backing and protected tenure, to handle grievances impartially.
- Strengthen statutory bodies (e.g., Lokpal under the Lokpal and Lokayuktas Act 2013) with adequate resources and enforcement powers for systemic inquiries [23].
- Judicial monitoring committees to track undertrial case durations and recommend remedial measures, as seen in follow-ups to *Hussainara Khatoon* [3].

7.3 Procedural Safeguards

- In criminal laws prone to misuse (e.g., Section 498A), reinforce preliminary inquiry mechanisms—such as Family Welfare Committees at district level—to assess prima facie substance before automatic arrests, following *Arnesh Kumar v. State of Bihar* (2014) guidelines [24].
- In workplace POSH processes, standardize training for inquiry committees, ensure confidentiality, and incorporate appeal mechanisms for both complainant and respondent [25].
- In campus disciplinary codes, define clear protocols for event approvals, protest handling, and safety measures, with stakeholder representation including student bodies [26].

7.4 Legal and Civic Education

- Integrate foundational legal literacy in school and college curricula: rights, procedural basics, and recourse mechanisms, fostering early awareness of due process [27].
- Workshops and orientation programs for employees on workplace rights, grievance procedures, and anti-retaliation safeguards.
- Community outreach on RTI use, legal aid access, and understanding jurisprudence in local languages to empower marginalized groups.

7.5 Digital Tools and Media Vigilance

- Leverage digital platforms for anonymous reporting of institutional misconduct, with data analytics to detect hotspots of misuse.
- Encourage investigative journalism and civil society partnerships to spotlight systemic issues; protect press freedom to ensure fearless scrutiny [28].
- Develop secure portals for whistleblowers with legal protection, ensuring follow-up action.

7.6 Judicial and Administrative Reforms

- Address court backlogs through expansion of judicial capacity, alternative dispute resolution (ADR) promotion, and technology-enabled case management [29].
- Standardize timelines for common procedures (e.g., bail hearings) with accountability for undue delays, while preserving judicial discretion where necessary.
- Strengthen public servant training on ethical enforcement of rules, with performance metrics including fairness indicators.

7.7 Cultivating Institutional Culture

- Leadership in institutions must model transparent decision-making and welcome scrutiny.
- Diversity and inclusion initiatives should go beyond quotas to address implicit biases—through sensitization workshops and bias audits.
- Encourage feedback loops: employee/student councils with real authority to raise concerns and suggest improvements.

Conclusion

The chasm between the formal letter of rules and their lived application in India stems from intertwined structural, cultural, and resource-driven factors. Addressing misuse of rules demands a holistic strategy: empirical transparency, independent oversight, procedural safeguards, legal literacy, and cultural transformation. When enforcement aligns with egalitarian principles, rules cease to be tools of manipulation and become instruments of empowerment and justice. A jurisprudence grounded in equity, accessibility, and fairness—as theorized by scholars like Upendra Baxi and Marc Galanter—offers pathways to transform the misuse of rules into meaningful protections. India’s challenge is not merely to enact more laws, but to ensure existing frameworks function impartially and inclusively—thereby restoring trust in institutions and upholding the promise of rule-based governance.

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